

THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR

MR. JUSTICE SALAHUDDIN PANHWAR

MR. JUSTICE ISHTIAQ IBRAHIM

Jail Petition No.491 of 2022

(On appeal against the judgment dated 18.10.2022, passed by the Lahore High Court, Lahore in Criminal Appeal No.22329-J of 2019 and Murder Reference No.46 of 2019)

Muhammad Ishaq

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Abid Mehmood, ASC

For the State: Rai Akhtar Hussain, Addl. PG, Punjab

Date of hearing: 14.05.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Petitioner, Muhammad Ishaq, was charged in FIR No. 646 dated 16.05.2017, registered under Sections 302 and 324 PPC at Police Station City Raiwind, District Lahore, for murdering his mother, Mst. Khatoon Bibi and his sister-in-law Mst. Riffat Bibi, by inflicting dagger (churri) blows. He was further charged for attempting to commit the murder of his brother, Muhammad Ibrahim, and another sister-in-law, Mst. Ulfat Bibi, and causing them injuries with the same weapon on 16.05.2017 at about 8:30 p.m. inside their residence situated in Mohallah Islamabad, Raiwind, Lahore. The alleged motive behind the occurrence was the refusal of the family members to give him money. After trial, the learned Additional Sessions Judge, Lahore ("the Trial Court"), vide judgment dated 28.02.2019, convicted the petitioner under Section 302(b) PPC and sentenced him to death on two counts. He was also directed to pay compensation amounting to Rs. 200,000/- to the legal heirs of each deceased and, in default thereof, to undergo six months' simple imprisonment. He was further convicted under

Section 324 PPC and sentenced to simple imprisonment for three years.

2. The petitioner's appeal was dismissed by the Lahore High Court, Lahore ("the High Court"), which maintained his conviction and sentences. Consequently, Murder Reference No. 46 of 2019, submitted by the Trial Court for confirmation of the death sentence, was answered in the affirmative vide judgment dated 18.10.2022. Aggrieved by the said judgment, the petitioner-convict has filed the instant Jail Petition seeking leave to appeal.

3. Having heard the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General, Punjab, appearing on behalf of the State, we note that the unfortunate occurrence took place on 16.05.2017 at about 8:30 p.m. inside the house of the complainant Din Muhammad (PW-4), who is the real father of the petitioner-convict. He along with his sons Muhammad Ibrahim (PW-5) and Muhammad Ismail (PW-8), and his daughters-in-law Mst.Ulfat Bibi (PW-6) and Mst.Shamim Bibi (PW-7), furnished a consistent ocular account of the occurrence. All the eyewitnesses were inmates of the same house where the incident took place, therefore, their presence inside the house at the relevant time was quite natural. Moreover, two of the eyewitnesses, namely Muhammad Ibrahim (PW-5) and Mst. Ulfat Bibi (PW-6), sustained dagger injuries during the occurrence while attempting to rescue the deceased. All the eyewitnesses in their statements directly and singularly charged the petitioner with a specific role of inflicting dagger blows upon his mother, Mst. Khatoon Bibi, and his sister-in-law, Mst. Riffat Bibi, both deceased, attempting to commit the murder of Muhammad Ibrahim (PW-5) and Mst. Ulfat Bibi (PW-6) as well as causing them injuries with the dagger (Churri). We find no conceivable reason as to why the complainant, being the real father of the petitioner-convict, or the other prosecution witnesses, who are closely related to him, would falsely implicate him in the case while allowing the actual culprit to escape unpunished. The eyewitnesses were subjected to cross-examination but nothing beneficial to defence or adverse to the prosecution could be elicited from them.

4. The medical evidence furnished through Dr. Faiza (PW-11), Dr. Zubair Iqbal (PW-12), and Dr. Talha Bin Talib (PW-17), who

conducted the postmortem examinations of the deceased and medically examined the injured witnesses, fully corroborates the ocular account furnished by the prosecution witnesses. Furthermore, the positive report of the Punjab Forensic Science Agency (PFSA), Lahore, in respect of the blood-stained dagger (Exh.PX), lends further corroboration to the ocular account.

5. Upon our independent and meticulous appraisal of the evidence available on record, we are persuaded to hold that the learned Courts below, while appreciating the evidence in its true perspective, rightly concluded that the guilt of the petitioner-convict stood established beyond any shadow of doubt. We, therefore, find no infirmity, illegality, or perversity in the concurrent findings regarding the guilt of the petitioner recorded by the Courts below warranting interference by this Court. However, in view of the order dated 17.06.2025 passed by this Court, followed by the report of the Medical Board, submitted by the Executive Director, Punjab Institute of Mental Health (PIMH), Lahore, the question of sentence requires serious consideration. For facility of reference, the order dated 17.06.2025 is reproduced hereunder:-

“Learned counsel who assisted us on behalf of the petitioner has drawn our attention to the testimonies of three witnesses who had deposed the ocular account. All three of them were closely related to the deceased as well as the petitioner. They were consistent in their assertion that the petitioner suffered from mental disorder and that he was also admitted in a mental hospital for treatment. It appears from the record that this plea was never taken by the petitioner during trial. However, since sentence of death has been awarded, therefore, keeping in view the principles of safe administration of justice, it would be appropriate to direct the Executive Director of Punjab Institute of Mental Health, Lahore to constitute a Medical Board consisting of at least three specialists in the field of psychiatry. The Board after examining the petitioner is expected to submit its report preferably within four weeks, inter alia, highlighting the medical condition of the petitioner and any mental disorders which he may be suffering from. The office is directed to send a copy of this order to the aforementioned Executive Director and the Superintendent of Prison where the petitioner has been incarcerated. The latter shall ensure that the presence of the petitioner is facilitated before the medical board on the date

when he is to be examined. The office is further directed to relist the petition after summer vacations.”

6. In compliance with the order referred to above, a Medical Board comprising Dr. Khalid Mahmood (Chairman), Director General Health Services, Punjab, Lahore; Dr. Aysha Rashid, Executive Director, Punjab Institute of Mental Health (PIMH), Lahore; Dr. Ali Madeeh Hashmi, Professor of Psychiatry, King Edward Medical University, Lahore; Dr. Ahmad Waheed, Assistant Professor of Psychiatry, SIMS/SHL, Lahore; Dr. Regina Mahmood, Chief Consultant Psychiatrist, Unit-C, PIMH, Lahore; and Dr. Muhammad Qazafi, Additional Medical Superintendent, Services Hospital, Lahore, submitted its report wherein it was opined by the Board that the petitioner-convict is a patient of Bipolar Disorder and has suffered frequent relapses in the past. The Board further observed that, though he is presently stable on treatment, however, requires continued psychiatric management and medication.

7. It is evident from the record that the plea of mental illness was never raised by the petitioner-convict during the trial; consequently, the learned Trial Court had no occasion to advert to the requirements of Section 465, Cr.P.C. The said provision contemplates that where, during the course of a trial before a Court of Session, an accused appears to be of unsound mind and incapable of making his defence, the Court is under a legal obligation to inquire into the factum of such unsoundness and incapacity. Upon being satisfied that the accused is of unsound mind and incapable of defending himself, the Court is required to record a finding to that effect and postpone further proceedings in the matter. Sub-section (2) of Section 465, Cr.P.C. further provides that such inquiry shall be deemed to form part of the trial. As stated earlier that at no stage of the proceedings it was the defence stance that the petitioner-convict was incapable of understanding the nature of the proceedings or of making his defence. Likewise, no application seeking compliance with Section 465, Cr.P.C. was ever moved before the learned Trial Court. It is also significant that the entire trial was conducted in the presence of the petitioner-convict, and nothing is available on the record to suggests that his demeanor or conduct during the proceedings created an impression before the learned Trial Court that he was incapable of comprehending the trial

or effectively participating in his defence. Had there been any apparent incapacity on the part of the petitioner-convict to follow the proceedings, the same would naturally have attracted the attention of the learned Trial Court, necessitating recourse to the procedure envisaged under Section 465, Cr.P.C.

8. It is a matter of record that the petitioner-convict is behind bars since his arrest on 23.05.2017 and has thus undergone incarceration for almost nine years. Since the judgment of conviction dated 28.02.2019, he is in the death cell. In these circumstances remanding the matter to the learned Trial Court at this belated stage for the purpose of conducting an inquiry under Section 465, Cr.P.C., particularly when no such plea had been raised by the defence during trial, would serve no useful purpose. Rather, such a course would unnecessarily prolong the litigation and entail avoidable hardship not only for the petitioner-convict but also for the prosecution witnesses and the State machinery, which would again be drawn into protracted proceedings after a considerable lapse of time. We are, therefore, of the considered view that remanding the case for compliance with Section 465, Cr.P.C. would not advance the cause of justice. However, the mental illness of the petitioner-convict, as reflected in the report of the Medical Board, constitutes a significant mitigating circumstance while considering the question of sentence. Furthermore, the peculiar facts of the case, namely that one of the deceased was the petitioner-convict's own mother, coupled with the spirit of Section 306, PPC, also weigh in favour of extending the benefit of lesser punishment. Taking into consideration all the mitigating circumstances attending the case, we are of the considered opinion that the sentence of imprisonment for life, instead of capital punishment, would adequately meet the ends of justice.

9. Accordingly, this petition is converted into an appeal and is partly allowed in the manner that the conviction of the appellant Muhammad Ishaq under section 302(b), P.P.C. is maintained; however, the sentence of death awarded to him on two counts is commuted to rigorous imprisonment for life on two counts as *Ta'zir*. The conviction and sentence of the appellant under section 324 PPC are maintained. The substantive sentences of imprisonment shall

run concurrently and benefit of Section 382-B Cr.P.C. is extended to the appellant.

10. In view of the serious nature of the mental illness of the appellant-convict and the potential risk that his condition may pose to the safety of other inmates within the prison, the Superintendent Central Jail Lahore, shall forthwith refer the appellant-convict Punjab Institute of Mental Health, Lahore and the Medical Superintendent of the said Institute or its Facility shall ensure that the appellant-convict is examined, treated and managed strictly in accordance with the applicable law, rules and regulations governing the treatment and custody of mentally ill prisoners. He shall also constitute, where necessary, an appropriate Medical Board to periodically review the mental health condition of the appellant-convict and ensure that he continues to receive appropriate medical management and supervision. He shall also maintain proper medical record of the treatment of the appellant-convict and submit periodic reports regarding his mental health status to the Superintendent Central Jail Lahore.

Islamabad the

14th May, 2026

Approved for Reporting

M.Siraj Afridi PS